

G. Valli Alias Rayaprolu vs State Of Andhra Pradesh And Anr. on 18 December, 2003

Equivalent citations: AIR2004AP174, 2004(4)ALT59, AIR 2004 ANDHRA PRADESH 174, (2004) 4 ANDH LT 59

ORDER

G. Yethirajulu, J.

1. These two Revision Petitions i.e. C.R.P. Nos. 405 and 406 of 1995 are filed by the major daughters of the declarant against the order of the Land Reforms Appellate Tribunal, West Godavari at Eluru in L.R.A. Nos. 98 and 96 of 1994 respectively. The second respondent is the declarant. He was declared as a surplus holder. His daughters Valli and Saroja contended that by virtue of the amendment brought to Hindu Succession Act in the year 1986, they are entitled for share in the property of the declarant on par with the sons, and if their shares are excluded, the declarant becomes a non surplus holder. Therefore, they requested to exclude their shares from the holding of the declarant. The plea of the revision petitioners was not accepted by the Appellate Tribunal. They preferred these revision petitions questioning the validity and legality of the said order. Since both the revision petitions are against a common order passed by the Tribunal and are in respect of the same properties relating to the declarant, both the revision petitions are clubbed together and this common order is passed.

2. The revision petitioners contended that Smt. Valli was born on 1-5-1959 and her marriage was performed on 7-10-1987. Smt. Saroja was born on 30-11-1961 and her marriage was performed on 6-3-1988.

The Amendment to the Hindu Succession Act, 1956 came into force on 5-9-1985, therefore they are entitled to equal shares along with their brothers and father. They requested to exclude 1/4th share of each of them from the holding of the declarant.

3. The Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 (for short 'the Act') came into force on 1-1-1975. Section 4 Clause 2 of the Act reads as follows :--

"The ceiling area in the case of a family unit consisting of more than five members shall be an extent of land equal to one standard holding plus an additional extent of one fifth of one standard holding for every such member in excess of five, so however, that the ceiling area shall not exceed two standard holdings."

4. A family unit consisting of five members is entitled to one standard holding and every member in excess of five is entitled to possess 1/5th of the standard holding in excess of one standard holding.

However, the total ceiling area shall not exceed two standard holdings.

5. Section 4 of the Act provides for fixing the ceiling area with reference to the family unit consisting of the declarant, his wife and minor children. Section 3(f) of the Act reads as follows :--

"Family unit" means--

(i) in the case of an individual who has a spouse or spouses such individual, the spouses and their minor sons and their unmarried minor daughters, if any.

(ii) in the case of an individual who has no spouse, such individual and his or her minor sons and unmarried minor daughters'.

(ii) in the case of an individual who is a divorced husband and who has not remarried, such individual and his minor sons and unmarried minor daughters, whether in his custody or not, and

(iv) where an individual and his or her spouse are both dead, their minor sons and unmarried minor daughters.

Explanation : Where a minor son is married, his wife and their offspring if any, shall be deemed to be members of the family unit of which the minor is a member.

6. Major unmarried daughters are not included in the family unit as defined under Section 3(f) of the Hindu Succession Act. but they can be regarded as individuals. In these cases, the revision petitioners were minor as on 1-1-1975.

7. It was represented by the learned Government Pleader for Land Reforms that though the revision petitioners remained unmarried by the date of the Amendment to the Hindu Succession Act came into force, they were minors as on 1-1-1975 and therefore, they cannot be treated as the person entitled for separate holding under the Act. In Kum. Addalagadda Alivelamma v. Special Tahasildar, Land Reforms (1987) 2 APLJ (HC) 192 a learned single Judge of his Court while relying on Section 29A of the Hindu Succession Act observed that 'the daughters are entitled to claim shares in the joint family property on par with the brothers.' Section 29A of the Hindu Succession Act reads thus :--

'Equal rights of daughters in coparcenary property notwithstanding anything contained in Section 6 of this Act :--

(i) In a joint Hindu family governed by Mitakshara law, the daughter of a coparcenary shall by birth become a coparcenary in her own right in the same manner as the son and have the same rights in the coparcenary property as she would have had if she had been a son, inclusive of the right to claim by survivorship, and shall be subject to the same liabilities and disabilities as the son;

(ii) At a partition in such a joint Hindu family, the coparcenery property shall be so divided as to allot to the daughter the same share as is allottable to a son.

8. In order to claim the said benefit they have to show that they were neither married prior to the amendment of the Act nor a partition prior to the Act.

9. The revision petitioners were unmarried minor daughters by the date of the Act came into force. Therefore, they were included in the family unit. Had they been majors by 1-1-1975 they would have been entitled for the benefit under the amendment Act by getting a share in the joint Family property on par with their brothers. They are entitled for share in the family holding, subject to the Government taking possession of the excess land from the lands of the family, but as the revision petitioners are admittedly minors as on 1-1-1975, they cannot claim any benefit under Section 29A of the Hindu Succession Act, 1956.

10. In the light of the above circumstances, the plea of the revision petitioners that their shares are liable to be excluded from the holding of the declarant cannot be accepted. There is no grounds to interfere with the order of the Tribunal.

11. The Revision Petitions are accordingly dismissed. No order as to costs.